

Multiple Choice

1. **Answer:** A

Options: A) It is jurisdiction based on the harm to national interests by conduct committed abroad; B) It is jurisdiction in order to protect one's nationals abroad; C) It is jurisdiction in order to protect international human rights; D) It is jurisdiction based on the nationality of the offender

Note: The protective principle of jurisdiction asserts that a state can exercise legal authority over foreign conduct that threatens its national interests, thus justifying intervention even when the act occurs outside its borders.

2. **Answer:** C

Options: A) Both are concerned with the 'law in action.'; B) Both are anti-formalist and sceptical; C) Both adopt a liberal ideology.; D) Both attempt to demystify the law.

Note: The correct answer is accurate because Critical Legal Studies (CLS) fundamentally critiques liberal ideology, arguing that law is not a neutral tool for justice but rather a means of perpetuating power structures, unlike American realism, which does not reject liberal principles outright.

3. **Answer:** D

Options: A) Incorporationism' accepts that judges may decide cases by reference to moral factors.'; B) A soft positivist rejects the role of morality in the description of law.; C) Sometimes the definition of law includes moral considerations.; D) Judges lack strong discretion.

Note: The correct answer is based on the idea that if soft positivism allows for moral criteria in the rule of recognition, then judges must have some level of discretion to interpret those criteria, making the assertion that judges lack strong discretion inconsistent with this view.

4. **Answer:** D

Options: A) Alan Gerwith; B) Emmanuel Kant; C) John Locke; D) Jeremy Bentham

Note: Jeremy Bentham criticized the concept of natural rights as "nonsense on stilts" because he believed that rights should be grounded in the law and social utility rather than in abstract, inherent principles.

5. **Answer:** C

Options: A) The UK Constitution's only source of power is that of the sovereign; B) The UK Constitution gives the judiciary the power to overturn acts of parliament; C) The UK Constitution is uncoded and can be found in a number of sources; D) The UK Constitution is based on a Bill of Rights

Note: The UK Constitution is considered uncoded because it is not contained in a single written document, but is instead derived from various sources such as statutes,

conventions, judicial decisions, and works of authority, making the correct answer accurate.

True / False

6. **Answer:** True

Options: A) True; B) False

Note: The Critical Legal Studies School contends that legal rules are inherently biased and are used by those in power to maintain existing social hierarchies and injustices, thereby reinforcing the status quo.

7. **Answer:** False

Options: A) True; B) False

Note: Fuller's concept of law, known as legal positivism, emphasizes the importance of the moral purpose of law and the role of social norms in its validity, rather than solely focusing on strict adherence to established legal rules.

8. **Answer:** False

Options: A) True; B) False

Note: Kant's 'categorical imperative' emphasizes acting according to universal moral principles that respect individuals' autonomy and rationality, rather than prioritizing community interests over personal values.

9. **Answer:** False

Options: A) True; B) False

Note: Recognition of governments in contemporary international relations is granted to a variety of political entities, including authoritarian regimes and non-democratic governments, based on strategic, economic, and diplomatic interests rather than solely on their democratic status.

10. **Answer:** True

Options: A) True; B) False

Note: The rule of recognition is a fundamental principle in legal systems that establishes the criteria for identifying valid legal norms, thereby conferring the authority and responsibility on judges to interpret and apply these norms in their rulings.

Long Form Response

11. **Answer:** The aphorism 'the movement of progressive societies has hitherto been a movement from Status to Contract' is often misinterpreted as a deterministic prediction about societal evolution. In reality, this statement, attributed to legal scholar Roscoe Pound, reflects a descriptive analysis of the historical shift from rigid, status-based relationships to more flexible, contractual ones, emphasizing the role of individual autonomy and choice. This misunderstanding can obscure the ongoing complexities

in constitutional law, where the balance between individual rights and societal obligations continues to evolve. By viewing the aphorism as a mere prediction, one risks overlooking the nuanced, contingent nature of legal development and the ongoing debates surrounding the nature of rights and contracts in a contemporary context. Thus, it is crucial to recognize this phrase as a commentary on historical trends rather than a formulaic forecast for the future.

Note: correct because it clarifies that the aphorism represents a historical observation rather than a deterministic theory, highlighting the significance of individual autonomy and the evolution from fixed social statuses to more dynamic contractual relationships, which is crucial for understanding its implications in constitutional law.

12. **Answer:** The relationship between customary law and treaty provisions is significant, as treaties can play a crucial role in the formation, codification, and evolution of customary law. Firstly, treaties may codify existing customary law, providing a formal written agreement that encapsulates practices accepted as legally binding by states. Secondly, they can 'crystallise' customary law by solidifying emerging practices into recognized norms, thereby accelerating their acceptance. Lastly, treaties can lead to the emergence of new customary law by establishing new standards and behaviors that states adopt over time, contributing to the development of international legal norms. This interplay illustrates how treaties not only reflect existing customs but also actively shape and influence the evolution of customary law.

Note: correct because it emphasizes that treaties serve as formal codifications of existing customary law and mechanisms that can crystallize and accelerate the recognition of emerging norms, illustrating the dynamic interplay between these two sources of international law.